

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge William J. Martínez**

Civil Case No. 10-cv-02529-WJM-KMT

DAVID GUARA,

Plaintiff,

v.

CITY OF TRINIDAD, a City Municipality,

Defendant.

FINAL JUDGMENT

PURSUANT to and in accordance with Fed. R. Civ. P. 58(a) and the Order and Verdict Form entered during the course of proceedings in this case, the following FINAL JUDGMENT is hereby entered.

I. PURSUANT to and in accordance with the Order Granting in Part and Denying in Part Defendant's Motion for Summary Judgment entered by the Honorable William J. Martínez on June 7, 2012, incorporated herein by reference, it is

ORDERED that the City of Trinidad Fire Department is not a separate entity from the City of Trinidad and, therefore, all claims against the City of Trinidad Fire Department are DISMISSED and the City of Trinidad Fire Department is DISMISSED as a party-Defendant to this action. It is

FURTHER ORDERED that Plaintiff's claim brought under 42 U.S.C. § 1983 has been ABANDONED and Final Judgment is hereby entered in favor of Defendant, City of Trinidad and against Plaintiff, David Guara on this claim. It is

FURTHER ORDERED that Defendant's Motion for Summary Judgment is
GRANTED IN PART and DENIED IN PART. It is

FURTHER ORDERED that Final Judgment is hereby entered in favor of
Defendant, City of Trinidad and against Plaintiff, David Guara on Plaintiff's retaliation
claim.

II. This matter was tried on October 22, 2012 through October 25, 2012, before a
duly sworn jury of eight, Judge William J. Martínez presiding. The trial proceeded to
conclusion and the jury rendered its Verdict Form as follows:

1. Has Plaintiff proven by a preponderance of the evidence that he was
subject to a hostile work environment based on his race and/or national
origin?

_____ Yes

___X___ No

*If your answer to Question 1 is "No", please sign and date this Verdict Form and
inform the Bailiff that you have reached a verdict. If your answer to Question 1 is
"Yes", please proceed to Question 2.*

2. Has Defendant proven by a preponderance of the evidence that it is not
responsible for the hostile work environment?

_____ Yes

_____ No

*If your answer to Question 2 is "Yes", please sign and date this Verdict Form and
inform the Bailiff that you have reached a verdict. If your answer to Question 2 is
"No", please continue to Question 3.*

3. What amount of damages has Plaintiff proven was caused by the hostile
work environment? (You must enter at least \$ 1.00.)

*Please sign and date the Verdict Form and notify the Bailiff that you have
reached a verdict.*

10/25/12
Date

[signed by Foreperson on Original]
Foreperson

ACCORDINGLY, IT IS ORDERED that, pursuant to Fed. R. Civ. P. 58(a), Final Judgment is hereby entered in favor of Defendant, City of Trinidad, and against Plaintiff, David Guara. It is

FURTHER ORDERED that Plaintiff's Complaint and this civil action are DISMISSED WITH PREJUDICE. It is

FURTHER ORDERED that Defendant, City of Trinidad shall have its costs by the filing of a Bill of Costs with the Clerk of this Court within fourteen days of the entry of Judgment.

DATED at Denver, Colorado this 30th day of October, 2012.

APPROVED:


Judge William J. Martinez
United States District Court

FOR THE COURT:

JEFFREY P. COLWELL, CLERK

s/ Edward P. Butler
Edward P. Butler,
Deputy Clerk